

any such licence to whom an order has been granted under this Act shall not, if and so long as he complies with the conditions upon which the order has been granted, be subject to any penalty for the contravention of the provisions of the Licensing Acts relating to the closing of premises during the time to which the order extends, but he shall not be exempted by any such order from any penalty to which he may be subject by any other provisions of those Acts or by any other Act.

(2) An order granted with respect to any Saturday shall not extend beyond twelve o'clock on Saturday night.

(3) Section sixty-four of the Licensing Act, 1872, which relates to the production of licences and penalties for non-production, shall apply to all orders granted under this Act. 35 & 36 Vict.
c. 94.

(4) In this section the expression "Licensing Acts" means the Licensing (Ireland) Acts, 1833 to 1905, and the Intoxicating Liquors (Ireland) Act, 1906. 6 Edw. 7, c. 39.

3. An order shall not be granted under this Act unless the applicant has, not less than twenty-four hours before making the application, served upon the superintendent of police for the division in which the hotel or restaurant is situated, a notice of his intention to apply for the order, setting out his name and address, and the place, occasion, and time for which the order is sought. Notice to
police
authority.

CHAPTER 34.

An Act to provide compensation to tenants on whom notice to quit is served with a view to the use of the land for the provision of Small Holdings under the Small Holdings and Allotments Act, 1908.

[3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) Where a council, or a landlord at the request of a council, terminates a tenancy of land by notice to quit, with a view to the use of the land or any part thereof by the council for the provision of small holdings, the tenant upon quitting shall be entitled to recover from the council compensation for the loss or expense directly attributable to the quitting which the tenant may unavoidably incur upon or in connection with the sale or removal of his household goods or his implements of Compensation
to tenants for
disturbance.

husbandry, produce, or farm stock on or used in connection with the land :

Provided that no compensation under this section shall be payable—

- (a) unless the tenant has given to the council a reasonable opportunity of making a valuation of such goods, implements, produce, and stock as aforesaid ; or
- (b) if the claim for compensation is not made within three months after the time at which the tenant quits.

In the event of any difference arising as to any matter under this section the difference shall, in default of agreement, be settled by arbitration.

(2) The Board of Agriculture and Fisheries shall, out of the Small Holdings Account, repay to a council any compensation paid by the council under an award or with the consent or approval of the Board, and also any expenses which, in the opinion of the Board, have been necessarily or reasonably incurred by the council in relation to any claim for compensation under this section.

(3) This section shall apply where a tenancy is terminated after the commencement of this Act, whether the notice to quit is given before or after such commencement.

Application
to tenancies
terminated
before com-
mencement
of Act.

2. Where a tenancy has been terminated before the commencement of this Act, and the tenant proves to the satisfaction of the Board of Agriculture and Fisheries that he has incurred any loss or expense for which he would have been entitled to compensation under the foregoing section of this Act if the tenancy had terminated after the commencement of this Act, the Board may, out of the small holdings account, pay to the tenant such compensation for such loss or expense as they think just : Provided that no compensation under this section shall be payable if the claim for compensation is not made before the first day of November nineteen hundred and ten.

Short title and
construction.

3. This Act may be cited as the Small Holdings Act, 1910, and shall be construed as one with the Small Holdings and Allotments Act, 1908, and that Act and this Act may be cited together as the Small Holdings and Allotments Acts, 1908 and 1910.